CONTRACT AGREEMENT

THIS CONTRACT AGREEMENT made the day..... day of 2020

Between M/s **Food Service India Pvt Ltd** having their registered office at 101 **Solitaire Corporate Park, Bldg No. 5, 7th Floor Andheri Kurla Road, Chakala, Andheri (E), Mumbai-400093, Maharashtra, India.** (here in after called the 'Employer') and representatives appointed by the Employer from time to time to provide professional design services / project &/or construction management services / inspection services on one part

AND

M/s **.....** having their registered office at..... (Here in after called the 'Contractor') of the other part.

WHEREAS the Employer desires that the Works known as **"Design, Supply and Installation of HSFD Doors, Section Doors and Dock Leveller at Project Vikalp, at Satara Mega Food Park Maharashtra"**should be executed by the Contractor, and the Contractor has accepted a Tender by the Contractor for the execution and completion of these Works and the remedying of any defects therein.

THE EMPLOYER AND THE CONTRACTOR AGREE as follows:

1. In this Contract Agreement words and expressions shall have the same meanings as are respectively assigned to them in the Conditions of Contract hereinafter referred to subject to changes made during the course of Post Bid Negotiation meetings which are brought out separately as Annexure to this Agreement.

2. The following documents shall be deemed to form and be read and construed as part of this Contract Agreement:

    2.1. Contractor's email reference .....dated .....confirming the final prices;

    2.2. Contract Provisions -Annexure I

    2.3. The General Conditions of Contract

    2.4. Special Conditions

    2.5. Quality Assurance Annexure II

    2.6. EHS Requirements – Annexure III

    2.7. BOQ – Annexure IV

    2.8. Drawings-Annexure –V

    2.9. Bank Guarantee

3. The Contract

In consideration of the payments to be made by the Employer to the Contractor as hereinafter mentioned, the Contractor hereby covenants with the Employer to execute and complete the Works and remedy any defects therein, in conformity with the provisions of the Contract. The Contractor shall not have the right to commence the Works until and unless the Contractor furnishes the Performance Security in the format prescribed by the Employer. All other terms and conditions remaining the same, the Contractor further agrees to complete and handover the works covered under this contract as per the following Schedule:

Activity	Finish
Supply	4 Week
Installation	1 Week

The following values, based on the rates specified in the attached BOQ, to be taken into consideration for applying the liquidated damages clause, based on the tender documents, to the works carried out under this contract:

Work Comprising of Design, Supply and installation HSFD Door, Section door and Dock leveller with all necessary accessories and with all safety features.

The commencement of liquidated damages for these respective values would be applicable from the commissioning date states above.

4. The Contractor agrees that this is a Lump Sum contract and should be executed in accordance with the documents specified in clause 2 above and the final agreed unit rates specified in the Bill of Quantities (BoQ) attached to this contract as Schedule I. The rates specified in Schedule I (for all items in the said Schedule including but not limited to items wherein the quantity column is specified as “Rate Only”) are as agreed between the two parties [including rates for those items not forming part of the works under this Letter of Intent (and the contract to be entered into later between the parties) but to be taken up later] and shall remain firm/unchanged for the entire duration of contract and for any extended period until the completion and acceptance of the works as referred to above by Employer and is not subject to any escalation/variation of any kind whatsoever irrespective of any increase in the basic material cost / labour cost / tax, duty cost, etc.

The quantities referred to in Schedule I of this contract is re-measurable and payment will be made based on the actual quantities of work executed in accordance with the good for construction (GFC) drawings and certified by the Project Managers / Employer and the agreed rates and those conditions governing the conditions of contract. These GFC drawings should have been pre-approved by Employer / Project Managers before commencement of work. The Contractor agrees that the item rates agreed includes all duties, taxes, cess and levies of any kind levied by Central or State Government or other statutory authorities including but not limited to VAT, Service Tax, entry tax and Octroi. The Contractor also agrees that credits of tax, duties, levies of any kind has been / will be passed on to Employer.

In case the Employer decides to change the status of the unit to EOU / STPI, then Contractor agrees to cooperate with the Employer for the Employer to avail all the benefits that the

Employer as an STPI / EOU would be entitled on taxes, duties, levies or any kind of taxes, duties, levies to the extent that could be made applicable for this contract.

If any work is undertaken which is not specified for in Schedule I to this letter then, unless agreed to prior with the Employer in writing, the Employer shall not be liable to pay the Contractor for such works carried out by the Contractor.

The Employer hereby covenants to pay the Contractor, in consideration of the execution and completion of the Works and the remedying of defects therein, at the times and in the manner prescribed by the Contract.

The Contractor further agrees that the Contractor shall indemnify and keep indemnified the Employer from all such claims in respect of all taxes, duties and levies that may be levied on the Employer and which are in effect currently. Only new taxes, duties, levies introduced by Central and / or State Government with a prospective effect, after execution of the Letter of Intent, and during the tenure of the project shall be borne by the Employer subject to the same being evidenced by the Contractor to the full satisfaction of the employer.

5. The Contractor recognises that this Agreement is being entered into by the Employer on the basis of the past track record of Contractor and their skill, technical expertise and the various warranties and representations made by them:

5.1.1. Warranty in Respect of Existing Conditions: The Contractor represents and warrants that he has examined and thoroughly familiarized himself with all existing conditions affecting the Work, including

5.1.1.1. the requirements and business needs of Employer

5.1.1.2. all Laws that apply to, relate to or affect the Work,

5.1.1.3. conditions bearing upon transportation, disposal, handling and storage of materials, equipment and/or supplies, and

5.1.1.4. the character of materials, equipment and/or supplies and facilities needed in the scheduling and execution of the Works and providing facilities to maintain Employer's operations.

5.1.2. Warranty in Respect of this Agreement: The Contractor represents and warrants that it is satisfied that the results of the examinations and visits correlate with the requirements of this Agreement. The Contractor also warrants that the Works under this Contract shall meet with all Laws including local laws, rules and regulations that impact or could impact either the Works or the operation of the Employer in the context of the Works.

5.1.3. Warranty in Respect of Solvency: The Contractor represents and warrants that it is financially solvent, able to pay its debts as they mature and possessed of sufficient working capital to complete the Works and perform its obligations under this Agreement.

5.1.4. Warranty in Respect of Capital and Experience : The Contractor represents and warrants that it is able to deliver the end result to meet with the requirements of Employer, and furnish tools, materials, supplies, and labour required to complete the Works and perform its obligations hereunder and has sufficient experience and competence to do so that it is fully familiar with all the Drawings / specifications etc and that it is fully capable of delivering the end result to meet with the requirements.

5.1.5. Warranty in Respect of Authority: The Contractor represents and warrants that its execution of the Agreement and its performance thereof are within its duly authorised powers.

5.1.6. Warranty in Respect of Labour Relations: The Contractor represents and warrants that it presently knows of no facts the existence of which might lead to a labour dispute which might affect the Works.

5.2. WARRANTY OF WORKS

5.2.1. Warranty of Quality: The Contractor warrants that all Works performed under this Contract shall be of good quality, free from any defects in design (wherever design has been done by the contractor or their subcontractors or vendors or specialised agencies engaged by the Contractor), workmanship or materials, shall conform to the requirements of the Specifications laid down therein, and shall be fit and sufficient for the purposes expressed in or reasonably to be inferred from, the Tender documents, results in the achievement of specific quality norms and fulfils in all respects the conditions laid down by the Employer.

5.2.1.1. Obligation to Correct within One Year: The Contractor guarantees the Works for a period of 12 months, from the date of the Taking-Over Certificate.

During the period of guarantee, the Contractor will repair or replace, free of charge, deliver and install at the location of Works, any parts worn or broken as a result of faulty workmanship or design (wherever design has been done by the contractor or their subcontractors or vendors or specialised agencies engaged by the Contractor), poor quality material provided that any such failure occurs under normal conditions and not on account of the Employer's negligence, wrong handling or lack of proper maintenance.

5.2.2. Continuing Obligation to Comply with the Agreement: The time period of one year from the date of Taking-Over Certificate or such longer period of time as may be prescribed by law or by the terms of this Contract relates only to the Contractor's specific obligation to correct the Works, and has no relationship to the time within which the Contractor's obligation to comply with this Contract may be sought to be enforced, in court or otherwise, nor to the time in which proceedings may be commenced to establish Contractor's liability with respect to its obligations other than specifically to correct the Works.

5.2.3. No Encumbrance: The Contractor warrants that title to all Works, Materials and equipment covered by an Invoice(s) and that no Works, Materials or equipment covered by an Invoice(s) will have been acquired by the Contractor, or by any other person for whose performance Contractor is responsible, subject to an agreement under which an interest therein or an encumbrance thereon is retained by the seller or otherwise imposed by Contractor or such other person.

5.3. WARRANTY OF MATERIALS

5.3.1. Warranty of Quality: The Contractor warrants to Employer that materials used for the works under the Agreement will be of good quality, new and of recent manufacture unless otherwise specified in this Contract. Materials not conforming to these requirements, including substitutions not properly approved or authorised may be considered defective. If required by Employer, Contractor shall furnish evidence satisfactory to Employer as to the kind and quality of Materials.

5.4. WARRANTY OF LEGAL COMPLIANCE

5.4.1. Compliance with Labour Laws: The Contractor warrants that all of the Works will be provided and produced in compliance with all requirements of the applicable Laws related to labour and employment.

5.4.2. Compliance with Occupational Safety Laws: The Contractor warrants that all the Work shall comply with the applicable Laws and regulations relating to occupational safety and health.

5.4.3. Compliance with Environmental Laws: The Contractor warrants that all the Work shall comply with the applicable Laws and regulations relating to the environment.

5.4.4. Compliance with Laws: Without prejudice to the warranties The Contractor warrants that it will comply with all applicable Laws.

5.5. SURVIVAL OF WARRANTIES

The representations and warranties herein shall survive the final completion of works.

6. The Employer may assign the whole or any part of the Tender & Contract agreement at any stage to any other company/entity without requiring the consent of the Contractor.
7. The Contractor agrees and confirms the amendment of the tender conditions specified in Annexure I to this Contract Agreement.

IN WITNESS whereof the parties hereto have caused this Contract Agreement to be executed the day and year first before written in accordance with their respective laws.

SIGNED by:

…….
(Name of Authorised Signatory)

for and on behalf of the Employer

In the presence of

Name: …… (Signature with Company Seal)

Address: ……

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……

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SIGNED & STAMPED by:

…….
(Name of Authorised Signatory)

for and on behalf of the Contractor

In the presence of

Name: …… (Signature with Company Seal)

Address: ……

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Annexure I: Contract Provisions

Item	Data
Employer's name and address	**Food Service India Pvt Ltd,** Solitaire Corporate Park, Bldg No. 5, 7th Floor Andheri Kurla Road, Chakala, Andheri (E), Mumbai-400093, Maharashtra, India
Contractor's name and address	Yet To appointed.
Engineer's name and address	Representatives commissioned by Employer from time to time including project management consultants, designers etc.
Commencement date	Date this contract was made (refer first paragraph of the contract).
Time for Completion of the Works	As per the provided contract schedule.
Defects Notification & Liability Period	365 days from the date of Taking over certificate.
Governing Law	The laws of Republic of India.
Ruling language	English.
Language for communications	English.
Time for access to the Site	Within 3 working days of Commencement Date.
Payment Terms	• 30% Advance • 50% Against Material Delivery • 15% Against Installation • 5% Retention
Number and timing of instalments of advance	NA
Currencies and proportions	100% in Indian Rupees.
Start repayment of advance payment	Non Recoverable
Repayment amortisation of advance payment	NA
Percentage of retention on interim payments	5% of the amount stated in the relevant Interim Payment Certificate
Limit of Retention Money	5% of the Accepted Total Contract Amount including Variations.
Release of Retention Money to Contractor	After successful completion of defect liability period

Item	Data
Minimum amount of Interim bills	As per payment terms
Period of honouring interim (running) bills.	As per Payment terms
Period of honouring final bill.	Within 90 days of submission of final bill along with measurements and reconciliation.
Plant and Materials for payment when shipped	NA
Payment for materials when delivered to the Site	NA
Amount of liquidated damages	0.5% (point five percent) per week of accepted total contract value.
Limit of liquidated damages	5% (five percent) of accepted total contract value.
Statutory deductions	TDS and WCT as applicable will be as per Central / State government stipulations.
GST	GST, Shown separately as applicable.
Currency / currencies of payment	Indian Rupees.